

Disclaimer: *In view of the European Commission's transparency policy, the Commission is publishing the texts of its Comprehensive Economic Partnership Agreement with Indonesia following the Ministerial announcement on 23 September 2025. These texts are published for information purposes only and may undergo further modifications including as a result of the process of legal revision. These texts are without prejudice to the final outcome of the Agreement between the EU and Indonesia. The texts will be final upon signature. The Agreement will become binding on the Parties under international law only after completion by each Party of its internal legal procedures necessary for the entry into force of the Agreement.*

CHAPTER 5

TRADE REMEDIES

SECTION A

ANTI-DUMPING AND COUNTERVAILING MEASURES

Article 5.1

General provisions

1. The Parties affirm their rights and obligations under Article VI of GATT 1994, the Anti-Dumping Agreement, and the SCM Agreement. Anti-dumping and countervailing measures shall be used in full compliance with all the relevant WTO requirements and shall be based on a fair and transparent system in full respect of the Parties' interests and rights of defence.
2. The preferential rules of origin under this Agreement shall not apply to anti-dumping and countervailing measures

Article 5.2

Notification and consultation

1. Upon receipt by a Party's competent authority of a properly documented anti-dumping application with respect to imports from the other Party and to the extent possible at least 7 calendar days before initiating such anti-dumping investigation, the Party shall provide written notification to the other Party of its receipt of the application.
2. Upon receipt by a Party's competent authority of a properly documented countervailing application with respect to imports from other Party, and before initiating an investigation, the Party shall provide written notification to the other Party of its receipt of the application. Such notification shall normally take place at least 14 calendar days in advance of the date of initiation and include an invitation for consultation on the application.

3. In any proceeding in which the investigating authorities determine to conduct an on-site verification of information provided by the respondent¹, the investigating authorities shall endeavour to notify such respondent as soon as possible.
4. Without prejudice to Article 6.5 of the Anti-Dumping Agreement and Article 12.4 of the SCM Agreement, the Parties shall ensure, immediately after any imposition of provisional measures and in any case before a final determination is made, full and meaningful disclosure to interested parties of all essential facts and considerations which form the basis for the decision to apply measures. Such disclosure shall be made in writing and allow interested parties sufficient time to make their comments.
5. The Parties affirm their rights and obligations under Annex II of the Anti-Dumping Agreement and in particular its paragraph 5, and under Articles 12.7 and 12.8 of the SCM Agreement. In the event the investigating authority intends to make a determination on the basis of facts available pursuant to Article 6.8 of the Anti-Dumping Agreement and Article 12.7 of the SCM Agreement, the investigating authority shall provide a reasoned and adequate explanation of:
 - (a) indication of conditions under which the use of facts available is applicable;
 - (b) the information which the interested party has failed to submit to the investigating authority, and
 - (c) the facts with which the investigating authority decided to replace the information referred to in point (b).

Article 5.3

Investigation after Termination

1. If an anti-dumping investigation in respect of goods from the other Party is terminated with a negative final determination, no investigation shall be initiated on the same goods by the importing Party within 12 months from the date of termination of the previous investigation.
2. The Parties shall avoid initiating an anti-dumping investigation on a good originating in the other Party on which anti-dumping measures have been terminated within the previous 12 months as a result of a review.
3. Notwithstanding paragraphs 1 and 2, the investigation authority of the importing Party may initiate an anti-dumping investigation when the circumstances have changed.

¹ For the purpose of this paragraph, the term “respondent” means a producer, manufacturer, exporter, importer, and, where appropriate, a government or government entity, that is required by a party’s investigating authority to respond to an anti-dumping or countervailing measures questionnaire.

Article 5.4
Article on Review

An expiry review under paragraph 3 of Article 11 of the Agreement on Anti-Dumping shall be initiated at an appropriate time during the final year of the period of application of the anti-dumping duties as defined in each Party's legal framework. Each Party shall endeavour to provide the opportunity for special consultations on issues arising from the subsequent expiry review investigation and avoid the perpetual imposition of anti-dumping and countervailing measures.

Article 5.5
Consideration of Public Interest

The investigating authority of a Party shall, in accordance with its laws and regulations, provide opportunities for all domestic interested parties to submit their views in writing with regard to anti-dumping and countervailing investigations. The Party shall take into account this information in its assessment of the public interest before imposing an anti-dumping or countervailing duty.

Article 5.6
Lesser Duty Rule

An anti-dumping or countervailing duty imposed by a Party shall not exceed the margin of dumping or countervailable subsidy, and the Party shall endeavour to ensure that the amount of this duty is less than that margin if such lesser duty would be adequate to remove the injury to the domestic industry.

Article 5.7
Anti-Circumvention

1. The Parties shall carry out anti-circumvention investigations in a transparent way and respect the interests and rights of defence of all interested Parties concerned by the investigation.
2. The Party conducting an anti-circumvention investigation shall, upon request from the other Party, provide it with non-confidential information regarding the companies under investigation.
3. In any proceeding in which a Party determines to conduct an on-site verification on the territory of the other Party, the investigated company shall be notified at least 14 working days in advance. The other Party's relevant authorities may participate in the on-site verification.
4. The Party conducting an anti-circumvention investigation shall, before a final determination is made, inform all interested parties on the territory of the other Party of the essential facts under consideration, which form the basis for the assessment, whether to extend the measures or to grant an exemption. All interested parties shall be provided adequate opportunity for commenting on such assessment. Such disclosure of essential facts should

take place within a reasonable period of time for the interested parties to defend their interests. Interested parties may also apply to be heard.

5. Any anti-circumvention investigation shall be completed within nine months of its date of initiation.

Article 5.8

Exclusion from Dispute Settlement

Chapter 22 (Dispute Settlement)] shall not apply to this Section.

Article 5.9

Cooperation On Trade Remedies Matters

1. The Parties shall cooperate in the form of a best practice dialogue on trade remedies, comprising representatives at an appropriate level of each Party's relevant trade remedies authorities.
2. The purpose of this cooperation shall be, to the extent possible, to:
 - (a) enhance a Party's knowledge and understanding of the other Party's trade remedy laws, policies and practices;
 - (b) oversee the implementation of this Chapter;
 - (c) improve cooperation between the Parties' relevant trade remedies authorities;
 - (d) exchange information to the extent possible on issues relating to anti-dumping, subsidies and countervailing investigations and measures; and to discuss other relevant topics of mutual interest as the Parties agree;
 - (e) develop capacity building programs and/or specific trainings related to the trade remedies laws and practices; and
 - (f) enhance the Parties' knowledge and understanding of anti-circumvention in the implementation of anti-dumping and countervailing measures.
3. The dialogue shall be conducted as and when necessary, as requested by either Party.

Article 5.10

Use of the English language

In order to ensure the maximum efficiency of the application of the trade remedies rules under these Sections, the investigating authorities of the Parties should use the English language for communications² in the context of trade remedies investigations between the Parties.

SECTION B

GLOBAL SAFEGUARD MEASURES

Article 5.11

General Provisions

1. The Parties affirm their rights and obligations under Article XIX of GATT 1994, the Safeguards Agreement and Article 5 of the Agreement on Agriculture.
2. A Party shall not apply with respect to the same good at the same time:
 - (a) a bilateral safeguard measure under Section C (Bilateral Safeguard Clause) of this Chapter; and
 - (b) a measure under Article XIX of GATT 1994 and the Safeguards Agreement.

Article 5.12

Transparency

1. Notwithstanding Article X.11 (General Provisions), at the request of the other Party and provided that it has a substantial interest, the Party shall promptly notify and provide all the pertinent information to the other Party upon:
 - (a) initiation of an investigation;
 - (b) preliminary determination (if any); and
 - (c) making a final finding.

This is without prejudice to Article 3.2 of the Safeguards Agreement.

2. When imposing global safeguard measures, the Parties shall endeavour to impose them in a way that least affects bilateral trade.
3. For the purposes of paragraph 2, if a Party considers that the legal requirements for the imposition of definitive safeguard measures are met, it shall notify the other Party and give the possibility to hold bilateral consultations. If no satisfactory solution has been reached

² By the term “communications”, the Parties mean questionnaire replies, written submissions, and letters.

within 30 days of the notification, the Party may adopt the definitive global safeguard measures.

Article 5.13

Exclusion from Dispute Settlement

Chapter 22 (Dispute Settlement)] shall not apply to this Section.

Article 5.14

Use of the English language

In order to ensure the maximum efficiency of the application of the trade remedies rules under these Sections, the investigating authorities of the Parties should use the English language for communications³ in the context of trade remedies investigations between the Parties.

³ By the term “communications”, the Parties mean written submissions and letters.

SECTION C

BILATERAL SAFEGUARD CLAUSE

Article 5.15

Application of a Bilateral Safeguard Measure

1. If, as a result of the reduction or elimination of a customs duty under this Agreement, any good originating in the territory of a Party is being imported into the territory of the other Party in such increased quantities, in absolute terms or relative to domestic production, and under such conditions as to cause or threaten to cause serious injury to a domestic industry producing like or directly competitive goods, the importing Party may adopt measures provided for in paragraph 2 in accordance with the conditions and procedures laid down in this Section during the transition period only, except as otherwise provided under Article 16.5.(c) of this Section.
2. The importing Party may take a bilateral safeguard measure which:
 - (a) suspends further reduction of the rate of customs duty on the good concerned provided for under this Agreement; or
 - (b) increases the rate of customs duty on the good to a level which does not exceed the lesser of:
 - (i) the applied most-favoured-nation rate of customs duty on the good in effect at the time the measure is taken; or
 - (ii) the base rate of customs duty specified in Annex XX (Elimination of Customs Duties) pursuant to Article [XX (Reduction or Elimination of Customs Duties)].

Article 5.16

Conditions and Limitations

1. A Party shall notify the other Party in writing of the initiation of an investigation described in paragraph 2 and consult with the other Party before applying a bilateral safeguard measure, with a view to reviewing the information arising from the investigation and exchanging views on the measure.
2. A Party shall apply a bilateral safeguard measure only following an investigation by its competent authorities in accordance with Articles 3 and 4.2(c) of the *Agreement on Safeguards* contained in Annex 1A to the WTO Agreement (hereinafter referred to as the "Agreement on Safeguards"), and to this end Articles 3 and 4.2(c) of the Agreement on Safeguards are incorporated into and made part of this Agreement, *mutatis mutandis*.
3. In the investigation described in paragraph 2, the Party shall comply with the requirements of Article 4.2(a) of the Agreement on Safeguards, and to this end Article 4.2(a) of the Agreement on Safeguards is incorporated into and made part of this Agreement, *mutatis mutandis*.
4. Each Party shall ensure that its competent authorities complete any such investigation within one year of its date of initiation.

5. Neither Party may apply a bilateral safeguard measure:
- (a) except to the extent, and for such time, as may be necessary to prevent or remedy serious injury and to facilitate adjustment;
 - (b) for a period exceeding three years, except that the period may be extended by up to two years if the competent authorities of the importing Party determine, in conformity with the procedures specified in this Article, that the measure continues to be necessary to prevent or remedy serious injury and to facilitate adjustment and that there is evidence that the industry is adjusting, provided that the total period of application of a safeguard measure, including the period of initial application and any extension thereof, shall not exceed five years; or
 - (c) beyond the expiration of the transition period, except with the consent of the other Party.
6. In order to facilitate adjustment in a situation where the expected duration of a safeguard measure is over three years, the Party applying the measure shall progressively liberalise it at regular intervals during the period of application.
7. When a Party terminates a bilateral safeguard measure, the rate of customs duty shall be the rate pursuant to Annex [XX (Tariff Reduction/Elimination Schedules)], that would have in effect but for the measure.

Article 5.17

Provisional Measures

In critical circumstances where delay would cause damage that would be difficult to repair, a Party may apply a bilateral safeguard measure on a provisional basis pursuant to a preliminary determination that there is clear evidence that imports of an originating good from the other Party have increased as the result of the reduction or elimination of a customs duty under this Agreement, and such imports cause serious injury, or threat thereof, to the domestic industry. The duration of any provisional measure shall not exceed 200 days, during which time the Party shall publish its preliminary determination and comply with the requirements of Article 5.16.3. The Party shall promptly refund any tariff increases if the investigation described in Article 5.16.2 does not result in a finding that the requirements of Article 5.15.1 are met. The duration of any provisional measure shall be counted as part of the period prescribed by Article 5.16.5 (b).

Article 5.18

Compensation

1. A Party applying a bilateral safeguard measure shall consult with the other Party in order to mutually agree on appropriate trade liberalising compensation in the form of concessions having substantially equivalent trade effects or equivalent to the value of the additional duties expected to result from the safeguard measure. The Party shall provide an opportunity for such consultations no later than 30 days after the application of the bilateral safeguard measure.

2. If the consultations under paragraph 1 do not result in an agreement on trade liberalising compensation within 30 days after the consultations begin, the Party whose goods are subject to the safeguard measure may suspend the application of concessions with respect to originating goods of the applying Party that have trade effects substantially equivalent to the safeguard measure. The applying Party's obligation to provide compensation and the other Party's right to suspend concessions under this paragraph shall terminate on the date the safeguard measure terminates.
3. The right of suspension referred to in paragraph 2 shall not be exercised for the first 36 months during which a bilateral safeguard measure is in effect, provided that the safeguard measure conforms to the provisions of this Agreement.

Article 5.19

Definitions

For the purposes of this Section:

- (a) "domestic industry" shall be understood in accordance with Article 4.1(c) of the Agreement on Safeguards. To this end, Article 4.1(c) is incorporated into and made part of this Agreement, *mutatis mutandis*;
- (b) "serious injury" and "threat of serious injury" shall be understood in accordance with Article 4.1(a) and (b) of the Agreement on Safeguards. To this end, Article 4.1(a) and (b) is incorporated into and made part of this Agreement, *mutatis mutandis*; and
- (c) "transition period" means a period of 10 years from the date of entry into force of this Agreement for products being liberalized in less than 10 years. For all products being liberalised in 10 years or more, the transition period shall be the liberalisation period plus 3 years.

Article 5.20

Use of the English language

In order to ensure the maximum efficiency of the application of the trade remedies rules under these Sections, the investigating authorities of the Parties should use the English language for communications⁴ in the context of trade remedies investigations between the Parties.

⁴ By the term "communications", the Parties mean written submissions and letters.